

BEFORE THE FEDERAL MARITIME COMMISSION

DOCKET NO. 25-26

Roger Waterloo d/b/a EcoBamboo, Complainant

v.

Ship4wd, Respondent

Date: October 7, 2025

SECOND MOTION FOR DEFAULT DETERMINATION

**RESPONSE TO RESPONDENT’S “MEMORANDUM IN REPLY TO COMPLAINANT’S MOTION FOR
DEFAULT DETERMINATION AND IN SUPPORT OF RESPONDENT’S CROSS-MOTION TO DISMISS”**

Complainant submits this Second Motion for Default Determination not as a courtesy, but as a direct response to Respondent’s sustained procedural evasion and strategic deflection. The record is clear: Respondent received the Complaint, failed to file a timely Answer, and now attempts to bypass regulatory obligations through misdirection and selective engagement. This Motion is not negotiation. It is containment. Complainant will not entertain diluted filings, jurisdictional misframing, or post hoc excuses. The Commission’s rules are explicit, and Respondent has violated them. The record reflects contradiction mapping, evidentiary omission, and procedural sabotage. Complainant now demands enforcement—not accommodation.

I. Procedural Default and Responsive Pleading

Respondent failed to file a timely Answer under Federal Maritime Commission (FMC) Rule 46 C.F.R. § 502.62. The Complaint was served on August 30, 2025 ([Formal Complaint p. 67](#)), and confirmed received by Ship4wd on September 8 ([CEV-2–Ship4wd receipt Formal Complaint](#)). Even if the Commission-stamped service date of September 9 is applied, the Answer deadline was October 4. Separately, Complainant filed the first Motion for Default Determination on September 26, 2025. Under FMC Rule 46 C.F.R. § 502.62(b), Respondent’s deadline to reply to that motion was October 3. No Answer or responsive pleading was filed by that date either.

Instead, Respondent submitted a “Memorandum in Reply to Complainant’s Motion for Default Determination and in Support of Respondent’s Cross-Motion to Dismiss” on October 6. This filing explicitly identifies itself as a reply to the Motion for Default Determination—not as an Answer to the Complaint. This distinction is critical. It confirms that Respondent reviewed the Complaint and chose to respond only to the procedural motion, while ignoring the substantive obligation to file an Answer.

Whether the Administrative Law Judge (ALJ) applies the September 24 deadline (based on service date by Complainant) or October 4 (based on Commission stamp), the Answer was due and never filed. The fact that Respondent replied to the Motion for Default Determination but not the Complaint itself reinforces procedural default. One would reasonably expect that a party seeking dismissal would first respond to the Complaint—not bypass it entirely.

This means **two procedural deadlines were missed**:

- The Answer to the Complaint (due September 24 or October 4)
- The Response to the Motion for Default Determination (due October 3)

Any subsequent filing related to the Complaint or Motion for Default Determination must be considered procedurally invalid under FMC Rule 46 C.F.R. § 502.62. To accept Respondent's late filings would contradict the Commission's own rules and undermine the integrity of fair proceedings.

II. Procedural Misrepresentation of Service Validity

Respondent's claim that service was invalid under the Hague Convention is factually and procedurally incorrect. Ship4wd is the registered trade name (dba) of Marine Shipp Fast Ltd., FMC Registration No. 029468, with a U.S. business address at 5801 Lake Wright Drive, Norfolk, VA 23502—operating under Zim Logistics USA LLC. This makes the Respondent a U.S.-based entity for purposes of FMC jurisdiction and service.

Respondent acknowledges this association in its own filings. Complainant used the Israel address only because Ship4wd never disclosed its corporate linkage to Marine Shipp Fast Ltd. All correspondence from Complainant was addressed to Ship4wd, and Ship4wd representatives consistently used a U.S.-based 920 area code in phone communications—further confirming domestic presence.

The Complaint was emailed to Ship4wd on August 30, 2025, and receipt was confirmed on September 8. Respondent's own memo identifies this date of August 30 and confirms substantive review. The argument that service was invalid under the Hague Convention is a post hoc deflection. It contradicts Respondent's own conduct and the Commission's procedural posture.

If Respondent were truly domiciled abroad, the Commission would not have initiated a designated judge or issued an Initial Order. The Commission's actions confirm that service was valid and jurisdiction properly established.

III. Clarification of Service Under FMC Rule 46 C.F.R. § 502.62(b)

Respondent's memo claims that the Commission determined September 9, 2025, as the official date of service, and therefore the Answer was not yet due on September 24, 2025. This interpretation is both incomplete and misleading.

FMC Rule 46 C.F.R. § 502.62(b) clearly states:

*"A respondent must file with the Commission an answer to the complaint and must serve the answer on complainant as provided in subpart H of this part within 25 days after the date of service of the complaint by the Commission **or the Complainant**..."* Respondent's counsel omits the critical phrase *"or the complainant."* This omission invalidates their argument. Complainant served the Complaint on August 30, 2025, and included a Certificate of Service. Respondent confirmed receipt on September 8. This establishes the service date under FMC rules—regardless of the Commission's later stamp.

The Commission's Initial Order may reflect its own administrative timestamp, but that does not override the regulatory language. The rule is explicit: **service by either the Commission or the Complainant starts the 25-day clock**. Respondent's failure to file an Answer within that window constitutes procedural default.

To accept Respondent's interpretation would require the Commission to disregard its own rule text. The ALJ must either enforce the plain language of § 502.62(b) or explain why it no longer governs this proceeding.

IV. Jurisdictional Clarity and Regulatory Standing

Respondent's memo attempts to cast doubt on the Commission's jurisdiction by invoking Rule 12(b)(1) and referencing interpretive precedent. This framing is both misleading and procedurally irrelevant.

The Complaint falls squarely under the Commission's jurisdiction for the following reasons:

- Respondent is a registered Ocean Transportation Intermediary (OTI) under FMC Registration No. 029468, operating under the legal entity Marine Shipp Fast Ltd d/b/a Ship4wd, with a U.S. business address at 5801 Lake Wright Drive, Norfolk, VA 23502—operating under Zim Logistics USA LLC. This confirms Respondent's domestic presence and subjection to FMC oversight."
- The conduct alleged involves delivery, handling, and regulatory misrepresentation—all directly connected to the receiving and delivery of property, as defined under § 41102(c).

- The Commission initiated a designated judge and issued an Initial Order, confirming that the Complaint met the threshold for adjudication. Jurisdictional doubt is contradicted by the Commission’s own procedural posture.
- The Complaint alleges sustained conduct over a six-week period, involving misrepresentation, concealment of federal directives, and cost misallocation. This is not a one-time incident. It reflects a pattern of unjust and unreasonable practices, satisfying the “normal, customary, and continuous” standard under 46 C.F.R. § 545.4(b).

Respondent’s reliance on Crocus Investments and Samsung Electronics is misplaced. Those cases involved isolated shipments with no sustained conduct or regulatory deflection. In contrast, Complainant’s Complaint spans 68 pages and documents a sustained pattern of misconduct, including a misrepresented fumigation certificate ([Formal Complaint EX-M, EV-M](#)), concealment of the June 18 U.S. Customs and Border Protection directive ([CEV-3-June 18 email CBP](#)), continued pursuit of an unauthorized remedy, cost misallocation despite third-party agreement ([Formal Complaint EX-AA, EV-AA, CEV-4-Multiverse confirmation re-export July 7](#)), and procedural sabotage across multiple intermediaries. Each instance is supported by documentary evidence, third-party confirmations, and timestamped correspondence. Even under Rule 12(b)(6), the facts alleged must be taken as true and all reasonable inferences drawn in Complainant’s favor. The Complaint contains detailed factual matter and states a claim to relief that is plausible on its face and jurisdictionally sound under Section 41102(c) of the Shipping Act, which prohibits an ocean transportation intermediary from failing to establish, observe, and enforce just and reasonable regulations and practices relating to or connected with receiving, handling, storing, or delivering property.

Respondent’s counsel fails to rebut these examples or provide any proof that Ship4wd complied with Section 41102(c). The Respondent’s memo offers no internal review, no corrective action, and no regulatory defense—only procedural deflection. In contrast, Complainant’s filing meets the plausibility standard under Rule 12(b)(6) and satisfies the “normal, customary, and continuous” threshold under 46 C.F.R. § 545.4(b).

The burden of rebuttal rests with Respondent. Silence is not a defense.

V. Concealment of CBP Directive and Regulatory Misrepresentation

Respondent’s counsel anchors the re-exportation to fumigation, not missing permits. This framing contradicts Ship4wd’s prior claims ([Formal Complaint EX-W, EV-W](#)) and confirms that the re-export was triggered by federal directive—not importer error. If Ship4wd disclosed this to counsel, then they knowingly concealed the true cause from the importer and third-party

intermediaries. This contradiction choreographs a deliberate misrepresentation and reinforces the procedural sabotage alleged in the Complaint.

Ship4wd sent Complainant on June 12 the Emergency Action Notification (EAN) issued by CBP ([CEV-5-EAN received from Ship4wd](#)), which mandated re-export. Despite this, Ship4wd stated: *"We have below update from CBP. The customs have found pests in the bamboo and must be fumigated by USDA Compliant fumigator. We have attached forms received from CBP, kindly sign and send back the EAN form. You also would have received an email from Clear It."* This contradicts the EAN's directive. Ship4wd's framing misrepresents the CBP directive and choreographs a concealment of its regulatory consequence. As primary forwarder, Ship4wd had a duty to interpret CBP directives accurately. Their failure resulted in incurring unnecessary CBP costs.

On September 25, Complainant received -on request- an email from Clearit with a PDF of all CBP filings. The June 18 email of CBP ([CEV-3-June 18 email CBP](#)) clearly states that re-export is mandatory. This was never disclosed to Complainant by Ship4wd nor by Clearit, as designated custom broker referred by Ship4wd. This awareness is further confirmed by a June 25 email from Shay Miletsky, stating: "As CBP's representative said to our brokerage agent speaking with her – there is no one to blame for this situation." ([CEV-6-re-export awareness Ship4wd](#)) This confirms that Ship4wd was informed of CBP's position prior to Complainant's June 27 email and contradicts their later claim that Complainant withheld information. It also affirms that Clearit acted as Ship4wd's brokerage agent—not Complainant's—reinforcing Ship4wd's duty to interpret and disclose CBP directives accurately. The framing of refumigation as a viable option, despite CBP's June 18 directive mandating re-export, further choreographs procedural misrepresentation. Instead, Ship4wd pursued fumigation until June 30 ([Formal Complaint EX-U, EV-U](#))—only changing course after Complainant, upon reviewing the June 27 CBP email, became aware of the irrevocable federal directive mandating re-export.

Clearit, in a July 1 email, stated: *"These efforts were undertaken in real time, in close coordination with our trade partner Ship4wd, and documented via the attached communication timeline."* ([CEV-7-Clearit July 1 email](#)) This confirms Ship4wd was actively informed of the USDA pest determination and the June 18 CBP directive. Their continued pursuit of fumigation despite this awareness reinforces the allegation of deliberate misrepresentation. The ALJ may request the full PDF, native files, and metadata for verification.

Ship4wd further implied, until July 30, that re-export and demurrage costs fell on Complainant ([CEV-8-Ship4wd cost insinuation](#)), despite Multiverse Exim Pvt Ltd's (Multiverse) July 7 agreement ([CEV-4-Multiverse confirmation re-export July 7](#)) to cover them. This conduct suggests fraudulent misrepresentation.

VI. Contradiction Exposure: Selective Review and Omission of Evidence

Respondent's counsel invokes Rule 12(b)(6), stating that "*in analyzing the complaint*," they found no facts supporting continuity. This admission confirms that the Complaint was reviewed thoroughly. Yet their memo selectively rebuts only the fumigation process—while ignoring the evidentiary record that contradicts their framing.

The Complaint includes:

- **Email from Ship4wd's Neerja Nair** ([CEV-9-fumigation 01](#)) and **Mr. Shay Miletsky** ([CEV-10-fumigation 02](#)) **with photos** showing the fumigation setup ([CEV-11-photo fumigation setup](#)). These images contradict the stated container size, location, and execution method on the fumigation certificate.
- **WhatsApp messages from PT Kemasindo Cepat Nusantara (KCN) to Multiverse** confirming that fumigation was done using the "normal" procedure, despite KCN recommending the AQIS method. Multiverse denied that request. ([Formal Complaint EX-AD, EV-AD](#))
- **Multiverse was contracted by Ship4wd**, but the responsibility to ensure proper fumigation and documentation rested with Ship4wd as the OTI. ([Formal Complaint EX-AA, EV-AA](#))
- **Draft phytosanitary certificates dated April 8** show that phytosanitary inspection occurred *before* fumigation—an improper sequence even under Indonesian standards. This procedural error is not mentioned or rebutted by Respondent's counsel. ([Formal Complaint EX-K, EV-K](#))

These facts are not incidental. They choreograph a sustained pattern of regulatory failure, misrepresentation, and procedural sabotage. The memo's silence on these points is not oversight—it is strategic omission.

Under Rule 12(b)(6), all facts alleged must be taken as true and all reasonable inferences drawn in Complainant's favor. The Complaint provides timestamped evidence, third-party confirmations, and visual documentation. It meets the plausibility standard and satisfies the continuity threshold under FMC precedent. Respondent's counsel reviewed the Complaint, saw the contradictions, and chose not to address them. That silence is actionable.

Respondent's counsel repeatedly falls back on the claim that the alleged misconduct was a "*one-time occurrence*." This framing appears to be their sole rebuttal to the Complaint. Yet it is contradicted by their own admission of having reviewed the Complaint under Rule 12(b)(6), and by their selective engagement with only one aspect—fumigation—while ignoring the broader pattern of regulatory failure.

The Complaint documents sustained misconduct across multiple actors, dates, and regulatory touchpoints. It includes visual evidence, timestamped correspondence, and third-party confirmations. The memo offers no rebuttal to these facts, no proof of compliance, and no alternative explanation. It relies entirely on the assertion that one violation is not enough. But ***one violation is still a violation***. And in this case, the record reflects multiple.

The ALJ must now decide whether to accept a defense built on selective omission and procedural deflection—or enforce the Commission’s own standards of regulatory integrity.

VII. Conclusion

For the reasons stated above—procedural default, evidentiary omission, contradiction mapping, and jurisdictional misframing—Respondent’s Motion to Dismiss must be denied.

For these reasons, no further explanation is necessary.

VIII. Settlement and Procedural Conduct

Complainant submits this Second Motion not as a tactical escalation, but as a necessary response to sustained non-engagement by Respondent and its counsel. From initial correspondence through Cozen O’Connor’s silence, the record reflects repeated stalling and disregard for procedural expectations.

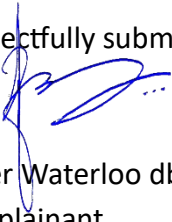
Despite multiple service attempts, early confirmation of receipt, and formal notice of representation, Respondent failed to file an Answer or communicate intent to engage. This reply arises from documented conduct—not impatience, but the need to preserve procedural integrity.

An earlier resolution was available and repeatedly requested. From the beginning of the hold through the issuance of formal demands to Ship4wd, a viable resolution remained on the table. On June 18, CBP issued a directive to Clearit—Ship4wd’s designated customs broker—stating that re-exportation was the only compliant option. Had Ship4wd acknowledged that directive and accepted Multiverse’s agreement to cover the fumigation and later the re-export cost, the matter could have been resolved immediately. From June 19 through July 3, Complainant consistently requested either delivery of the shipment or reimbursement. At that stage, the only loss to be covered was the held cargo and all related costs. A replacement shipment could have been ordered in late June, with arrival projected for late August or early September—still within the viable installation season for fencing. The business impact would have been limited and controllable.

Instead, Ship4wd concealed the CBP directive and misled Complainant by requesting payment for fumigation—a course neither authorized by CBP nor viable under USDA regulations. This misrepresentation choreographed avoidable delay, compounded financial harm, and obstructed the importer's ability to mitigate loss.

Complainant remains open to resolution, provided it reflects the full scope of documented losses—including those since August 27 ([Formal Complaint-Losses and Damages](#))—and the procedural exposure outlined in the record. Absent meaningful engagement, Complainant must pursue default determination to preserve institutional parity and personal containment.

Respectfully submitted,

A handwritten signature in blue ink, appearing to read 'Roger Waterloo', is positioned above the printed name.

Roger Waterloo dba EcoBamboo

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